

		multiplier. And again, this is a case with no expert depositions and no trial and one that presented no questions of first impression and no unique or extraordinary law and motion practice.” (Opposition page 8:24-27.) As such, Defendant’s opposition is not helpful to this Court’s analysis. Based on the Court’s review of the 311 pages of documents associated with the Declaration of Wirtz, and the grid on page 2-3 of the Motion, the Court concludes the following hours are simply excessive given the nature and complexity of the case, and likelihood that most, if not all of the discovery, pleadings, meet and confer letters, etc. were cut and pasted. Written Discovery – Requests 3.3 hours (reduce by 1 hour) Meet and Confer --Requests 8.4 hours (reduce by 4 hours) Deposition – Dealers --Requests 4.0 hours (Reduce by 3 hours) Motion to Compel Written Discovery-- Requests 8.1 hours (reduce by 8.1 hours, sanctions were already awarded) Motion to Compel Deposition—Requests 14.7 (reduce by 10.7 hours. Motion was denied. Other motions were never heard.) Client Communication--Requests 22.5 hours (this is grossly inflated. Reduce by 10 hours). <i>Multiplier</i> Plaintiff seeks a multiplier of 1.5x which is denied as unnecessary. All in all, Plaintiff’s motion is GRANTED, but reduced based on the above. Plaintiff requests costs in the amount of \$3,025.75, which are GRANTED. Defendant did not file a Motion to Tax/Strike Costs, nor did it object to the costs sought by Plaintiff. Plaintiff is ordered to provide a proposed Order which takes the above reductions in rates and time into consideration and makes the calculations accordingly. Defendant has 5 days to submit any objection thereto. <i>Plaintiff to give notice.</i>
106	Maldonado vs. City of Garden Grove, 24-01385594	Defendant LFA GROUP, LLC (“Defendant”) will ask the Court to compel Plaintiff MARISOL MALDONADO (“Plaintiff”) to serve further responses to Defendant’s Second Set of Form Interrogatories and will further move this Court for an order requiring Plaintiff to pay a monetary sanction to Defendant. Defendant’s Form Interrogatories (Set Two) were served 11/4/2025. (Decl. Howard¶11.) Responses were due December 8, 2025. (Id.) After an extension was granted, Plaintiff served responses on December 15, 2025. (Id.¶13.) On 1/28/2026, Defendant’s counsel telephonically met and

conferred with Plaintiff's counsel regarding Defendant's request for supplemental responses and advised the last day for Defendant to file its contemplated Motion to Compel Further Responses was 2/2/2026. (Id. ¶16.) Having not received supplemental responses, this motion was filed on 2/2/2026.

Here, Interrogatory 17.1 states:

Is your response to each request for admission served with these interrogatories an unqualified admission? If not, for each response that is not an unqualified admission:

- (a) state the number of the request;
- (b) state all facts upon which you base your response;
- (c) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and
- (d) identify all DOCUMENTS and other tangible things that support your response and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT or thing.

As to several RFAs, Plaintiff appears to have impermissibly grouped them together. Answers must be complete and responsive. [*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.]

In other responses, Plaintiff is evasive. And yet in others, the responses are inconsistent or incomplete. Notably, each answer in the response must be "as complete and straightforward as the information reasonably available to the responding party permits. If an interrogatory cannot be answered completely, it shall be answered to the extent possible." [CCP § 2030.220(a), (b)]

Therefore, the unopposed Motion is granted for the reasons stated in the Motion and Separate Statement. Supplemental responses to be served within 20 days.

Finally, while Defendant complains about boilerplate objections, it fails to set those forth in the separate statement. As such, the Court will not rule on the objections.

As to sanctions, while the amount of sanctions is not set forth in the notice of motion, Defendant's notice of motion did request monetary sanctions against Plaintiff and identified the enabling statute as CCP §2030.300(d).

Sanctions are warranted here as Plaintiff failed to provide supplemental responses, which required Defendant to prepare and file this motion. Plaintiff also failed to oppose this motion.

		Thus, the Court orders sanctions in the amount of \$2,221.65 (9 hours at \$240 an hour + \$61.65 filing fee) against Plaintiff Marisol Maldonado, to be paid within 20 days. <i>Defendant to provide notice.</i>
107	Mandaric vs. Zhu, 25-01535555	<i>Off-calendar.</i>
108	James Bay Resources Limited vs. Lockett & Horwitz, 23-01313001	Defendant, Lockett & Horwitz, Inc., fka as Horwitz & Armstrong, PLC ("L&H") moves for an order granting summary judgment against Plaintiffs, James Bay Resources Limited ("James Bay") and Stephen Shefsky ("Shefsky") (collectively, "Plaintiffs") as to the Second Amended Complaint ("SAC"). Alternatively, L&H moves for summary adjudication of the first cause of action (Issue No. 1), the second cause of action (Issue Nos. 2 and 3), the third cause of action (Issue No. 4), and all causes of action on the basis that they are all fail as they were raised after the expiration of the statute of limitations (Issue No. 5). Initially, L&H filed and served original moving papers on March 6, 2026. The original motion sought only summary judgment. (ROA 189.) The original Separate Statement of Undisputed Facts consists of 30 facts in support of summary judgment only. (ROA 181.) Thereafter, on May 5, 2026, L&H filed an Amended Notice of Motion and Motion which moved for summary judgment as in the original motion, but also moved, in the alternative, for summary adjudication on five issues. (ROA 231.) In support of the Amended Notice of Motion and Motion, L&H filed an Amended Separate Statement of Undisputed Facts which added the five issues and the asserted undisputed material facts for each of these issues. (ROA 229.) The Amended Motion is considered. <i>Request for Continuance</i> Plaintiffs contend that the instant Amended Motion for Summary Judgment is premature and that the motion should be denied or continued under Code of Civil Procedure section 437c(h) because L&H has failed to respond substantively to discovery propounded on it on May 23, 2025, and September 17, 2025. The reply does not address this argument. "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just." (Code Civ. Proc. § 437c(h).)